

Defendants contend the complaint falls short of the particularity required for fraud claims. Fraud must be pleaded with sufficient particularity that shows “how, when, where, to whom, and by what means the representations were tendered.” (*Stansfield v. Starkey* (1990) 220 Cal.App.3d 59, 73.) Against a corporate defendant, a plaintiff must also allege the name(s) of the person(s) who made the fraudulent representations and their authority to speak. (*Tenet Healthsystem Desert, Inc. v. Blue Cross of Cal.* (2016) 245 Cal.App.4th 821, 838.) Here, a careful review of the complaint reveals it sufficiently alleges all elements of a fraud claim and meets the heightened pleading standard. The demurrer is overruled on this basis.

Defendants also contend the fraud claim fails because it is prohibited by the economic loss rule. However, the economic loss rule does not prohibit a fraud claim “based on conduct committed during the course of a contractual relationship” and fraud claims involve “different policy concerns than” the types of claims that are prohibited by the economic loss rule. (*Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 43, discussing *Robinson Helicopter Co., Inc. v. Dana Corp.* (2004) 34 Cal.4th 979, 991.) The demurrer is overruled on this basis.

Based on the foregoing, the demurrer is overruled in its entirety. Defendants shall file and serve a responsive pleading by May 8, 2026.

17. S-CV-0056325 Tadros, Michael v. Roseville Point Health & Wellness

Moving party is advised the notice of a motion must include notice of the court’s tentative ruling procedures. (Local Rule 20.2.3(C).)

Defendant’s Motion to Compel Arbitration

Defendant’s request for judicial notice is granted.

Defendant Roseville Point Health and Wellness Center, LLC moves to compel arbitration of claims by plaintiff Michael Tadros, by and through his guardian ad litem, Mary Manoli, individually, and to stay the action pending the completion of arbitration. Defendant contends plaintiff voluntarily executed a binding agreement to arbitrate all claims against defendant.

Pursuant to Code of Civil Procedure section 1281.2, a trial court shall order arbitration of a controversy if an agreement to arbitrate the controversy exists, with certain exceptions inapplicable here. California has a strong public policy in favor of arbitration, but “a party cannot be compelled to arbitrate a dispute that he has not agreed to resolve by arbitration.” (*Buckner v. Tamarin* (2002) 98 Cal.App.4th 140, 142.) *Gordon v. Atria Management Co., LLC* (2021) 70 Cal.App.5th 1020, 1026.

In support of its motion, defendant presents an arbitration agreement between the parties as Exhibit B to the declaration of Erin Muzyka. The agreement identifies the parties as set forth in the following language at page 1, in the first full paragraph:

“This Arbitration Agreement is executed by and between Roseville Point Health & Wellness Center (“the Facility”) and Michael Tadros, either for him/herself or as the Legal Representative and/or Agent for Michael Tadros (collectively, ‘Resident’) in conjunction with the Resident’s admission to the Facility and relating to the provision of nursing facility services by Facility to Resident.”

(Def. Mot. Compel Arb. at 4.) The agreement is not signed by plaintiff, but rather by his daughter, Mary Manoli. Defendant contends Ms. Manoli acted as her father’s recognized medical decision-maker and authorized representative for several years and that she was a person authorized to execute the admission documents as her father’s representative under California law.

Plaintiff contends defendant has failed to establish the existence of an agreement to arbitrate because it has not demonstrated that Ms. Manoli, who electronically signed the agreement on May 6, 2023, had actual or ostensible authority to bind plaintiff to arbitration. Defendant offers no evidence of a power of attorney, nor any basis to find the existence of ostensible authority.

Plaintiff cites *Pagarigan v. Libby Care Center* (2002) 99 Cal.App.4th 298, 300, where the appellate court upheld the trial court’s denial of arbitration where the defendant skilled nursing facility failed to produce evidence the patient’s daughter was authorized to agree to arbitration on behalf of her comatose and mentally incompetent mother. (See also *Garrison v. Superior Court* (2005) 132 Cal.App.4th 253; *Hutcheson v. Eskaton FountainWood Lodge* (2017) 17 Cal.App.5th 937, 957 (distinguishing between authority to make a health care decision and authority to bind to arbitration.)

Defendant appears to argue ostensible agency. “An agency is ostensible when the principal intentionally, or by want of ordinary care, causes a third person to believe another to be his agent who is not really employed by him.” (Civ. Code, § 2300.) “Even when there is no written agency authorization, an agency relationship may arise by oral consent or by implication from the conduct of the parties. (*Van’t Rood v. County of Santa Clara* (2003) 113 Cal.App.4th 549, 571.) The existence of ostensible agency cannot be established by the conduct of the agent alone; conduct by the principal is essential to create the agency. (*Lovetro v. Steers* (1965) 234 Cal.App.2d 461, 474-475; see Civ. Code, §§ 2298, 2300.) “‘The principal must in some manner indicate that the agent is to act for him, and the agent must act or agree to act on his behalf and subject to his control.’” Thus, the “formation of an agency relationship is a bilateral matter. Words or conduct by both principal and agent are necessary to create the relationship.” (*Van’t Rood, supra*, 113 Cal.App.4th at p. 571; *Flores v. Evergreen at San Diego, LLC* (2007) 148 Cal.App.4th 581, 587-88; *Hutcheson, supra*, 17 Cal.App.5th at 958.) Here, defendant fails to present evidence supporting the existence of ostensible agency.

Conclusion

Based on the foregoing, the court denies defendant's motion to compel arbitration of plaintiff's claims and denies defendant's motion to stay the action. Defendant shall file its answer by May 8, 2026.

18. S-CV-0056771 Hammick, James Hunter v. Vernon, Jeffrey Jace

Specially Appearing Defendants' Motion to Quash Service of Summons for Lack of Personal Jurisdiction

Defendants RentDue Capital Fund 2 LLC, Rentdue Capital LLC, Jeffrey Jace Vernon and Ann Vernon move to quash service of summons based on lack of personal jurisdiction pursuant to Code of Civil Procedure section 418.10. Plaintiff opposes the motion and makes an alternative request for jurisdictional discovery. A plaintiff is generally entitled to conduct discovery with regard to a jurisdictional issue before the court rules on a motion to quash. (*Mihlon v. Superior Court* (1985) 169 Cal.App.3d 703, 711.) The court exercises its discretion and grants plaintiff leave to engage in limited discovery on the issue of personal jurisdiction. The court continues the hearing on the instant motion to quash to be heard on **June 30, 2026, at 8:30 a.m. in Department 42**, on the same date as the demurrer filed by co-defendant, Talease Perkins. Plaintiff may file and serve a supplemental opposition to the motion on or before June 16, 2026. Defendants may file and serve a supplemental reply on or before June 23, 2026.

19. S-CV-0057073 Foulk, Steven R v. Loandepot.com LLC

Application for Temporary Order

On April 15, 2026, plaintiff filed an application seeking a court order requiring defendant Selene Finance LP, the current servicer on a mortgage loan for which plaintiff is the obligor, to pay monthly premiums on two home insurance policies pending hearing on plaintiff's motion for preliminary injunction. By written order on April 16, 2026, the court scheduled the matter for hearing. Defendant Selene Finance LP filed an opposition on April 21, 2026 and presented evidence that both payments have been made. As it appears that plaintiff's request is now moot, the application is denied.

No appearance of the parties is required by the court. Oral argument will only take place if the parties timely request oral argument pursuant to Local Rule 20.2.3.
